



**Seismic - Highspot**

MN-75014

# **Phase 1 Determination**

**Acquisition may be put into effect**

4 June 2026

# 1. Determination and statement of reasons

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| <b>Notified acquisition</b>        | Seismic Software, Inc ( <b>Seismic</b> ) proposes to acquire 100% of the share capital of Highspot, Inc. ( <b>Highspot</b> ) by way of merger (the <b>Acquisition</b> ).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>Determination</b>               | The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>Parties to the Acquisition</b>  | <p>Both the acquirer, Seismic, and the target, Highspot, are US-headquartered businesses which offer sales enablement software platforms and products to Australian customers as well as globally.</p> <p>Sales enablement software helps improve enterprise sales teams' performance by providing content management and collaboration capabilities, data analytics capabilities and learning and coaching modules to build sales skills. Both parties' sales enablement platforms are enhanced by artificial intelligence. Both parties supply their products to customers across a range of industry sectors.</p> <p>Seismic is majority owned by Permira Advisers LLP (<b>Permira</b>). Permira would remain the controlling shareholder of Seismic following the Acquisition.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>Overlap between the parties</b> | The parties overlap in the supply of sales enablement software globally. The parties supply integrated sales enablement platforms that offer a full range of sales enablement applications and also offer each sales enablement application separately.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>Reasons for determination</b>   | <p>When making a determination in Phase 1, the Australian Competition and Consumer Commission (<b>ACCC</b>) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.</p> <p>For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's <a href="#">merger assessment guidelines</a> and <a href="#">interim merger process guidelines</a>.</p> <p>In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information.</p> <p>The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market in Australia. In reaching its decision, and based on the material before it, the ACCC makes the following findings.</p> <ul style="list-style-type: none"> <li>• The parties both have a limited presence in Australia, with few customers and relatively low revenue.</li> <li>• Most Australian customers of sales enablement software acquire one or more single applications from the overall range of sales enablement applications, rather than a full platform</li> </ul> |

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|                                | <p>solution. Information before the ACCC indicates that there are multiple alternative suppliers of the range of single applications offered by the parties. While some Australian customers use a full platform solution for which there are fewer alternatives, they did not express concerns about the impact of the transaction on competition.</p> <ul style="list-style-type: none"><li>• The ACCC closely considered information, including third party feedback, regarding Seismic's strong position in the supply of sales enablement software platforms and the potential for the Acquisition to further strengthen that position. However, given that alternatives, such as Showpad, will remain available, and taking into account other information including third party feedback, the ACCC found that customers would continue to have a range of competitive options for sales enablement software post-acquisition.</li></ul> |
| <b>Applications for review</b> | <p>A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.</p>                                                                                                                                                                                                                                                                                                                                                                           |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)  
of the Act**